



Northern Ireland Constitution (Amendment) Act 1973

1973 CHAPTER 69

An Act to provide that the number of persons who may hold appointments under section 8 of the Northern Ireland Constitution Act 1973 shall be increased to fifteen of whom not more than eleven may be members of the Northern Ireland Executive appointed in accordance with this Act. [19th December 1973]

BE IT ENACTED by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1.—(1) For subsections (1) and (3) of section 8 of the Northern Ireland Constitution Act 1973 (which relates to the Northern Ireland Executive) there shall be substituted respectively the following subsections:—

Amendment
of 1973 c. 36
ss. 7 and 8.

(1) The Northern Ireland Executive shall consist of the chief executive member and not more than ten other members.

(3) The chief executive member and the heads of the Northern Ireland departments shall be appointed by the Secretary of State on behalf of Her Majesty and, subject to the limit imposed by subsection (1) above on the number of members of the Executive, the Secretary of State may likewise appoint—

(a) the head of a Northern Ireland department to be a member of the Executive; and

(b) such number of additional persons (if any) as he thinks fit to discharge, as members of the Executive or otherwise, such functions as he may determine;

but the total number of persons at any time holding appointments under this section shall not exceed fifteen.

(2) In section 7(3) of that Act (which provides for such of Her Majesty's powers relating to transferred matters as She may delegate to the Secretary of State to be exercised through members of the Northern Ireland Executive and the Northern Ireland departments) for the words "members of the Northern Ireland Executive established by this Act" there shall be substituted the words "persons appointed under section 8 below"; and in section 7(4) of that Act (which requires a member of the Executive who is head of a Northern Ireland department to carry out the consultations there mentioned in connection with the affairs of his department) for the words from "A member" to "head" there shall be substituted the words "The head".

Short title.

2. This Act may be cited as the Northern Ireland Constitution (Amendment) Act 1973.